

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

DAVID CRUZ,

Plaintiff,

v.

CITY OF NEW YORK; and Individual
Defendants JOHN and JANE DOEs,
MUHAMMAD AMIR, PATRICK CHERRY,
MAYKO MATOS, JOHN O'CONNELL,
GUSTAVO MONTESDEOCA, KYONG KIM,
ANTHONY MORALES, VICTOR LEE, and
MARTA MENDEZ in their individual capacities,

Defendants.

Index No. 158098/2021

Law Dept. #: 2021-025078

Hon. Judy H. Kim, J.S.C.

Part 5

THIRD AMENDED COMPLAINT

Plaintiff David Cruz ("Plaintiff" or "Mr. Cruz"), by and through his undersigned counsel, brings this action against Defendants the City of New York (the "City") and Individual Defendants Muhammad Amir, Patrick Cherry, Mayko Matos, John O'Connell, Gustavo Montesdeoca, Kyong Kim, Anthony Morales, Victor Lee, Marta Mendez and John and Jane Does (collectively, the "Defendant Officers"), and complains and alleges as follows:

NATURE OF THE ACTION

1. This is a police brutality case. On June 1, 2020, Mr. Cruz was attacked by group of New York City Police Department ("NYPD") officers and beaten while unconscious and handcuffed.

2. Mr. Cruz was unarmed. He had not resisted arrest. He was not part of a protest. He was alone in a quiet street, with no crowd or chaos nearby. But more than a dozen officers, some armed with batons, riot shields, and armor, attacked him while effecting his arrest.

3. NYPD Officers struck Mr. Cruz in the head with a riot shield, tackled him, and knocked him unconscious. When Mr. Cruz regained consciousness, he was laying on his stomach, handcuffed, and surrounded by officers still beating him. He was beaten with batons, kicked, and dragged along the ground. He was restrained by NYPD officers elbowing and kneeling on his head and back. Mr. Cruz's girlfriend saw it all unfold and thought he was going to be killed.

4. Afterwards, NYPD officers denied Mr. Cruz needed medical care for more than 30 hours. For most of that time, Mr. Cruz was held in custody and forced to stand. After more than 24 hours' deprivation of medical care, food, or water, he fainted in his cell. Only several hours after that was he ultimately released on his own recognizance.

5. In the following days, Mr. Cruz and his loved ones were subjected to acts of intimidation by NYPD officers. On June 2 or 3, 2020, four NYPD officers traveled to Mr. Cruz's family home and conducted a baseless, warrantless search. NYPD officers also repeatedly called Mr. Cruz's girlfriend, demanding that she delete video footage of the attack she had taken on her cell phone, or else face arrest and jailtime.

6. All of this conduct violated Mr. Cruz's civil and Constitutional rights. Mr. Cruz respectfully brings this action to demand an appropriate and just remedy.

THE PARTIES

7. Plaintiff David Cruz is a 35 year-old resident of New York, New York.

8. Defendant City of New York (the "City") is a municipality that is a political subdivision of the State of New York. The City is authorized by law to maintain a police department, and does maintain the NYPD, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The City assumes the risks incidental to the

maintenance of a police force and the employment of police officers.

9. Defendant Officers John and Jane Does, Muhammad Amir, Patrick Cherry, Mayko Matos, John O'Connell, Gustavo Montesdeoca, Kyong Kim, Anthony Morales, Victor Lee, and Marta Mendez are members of the NYPD who participated in or observed the violent assault of Mr. Cruz on June 1, 2020, participated in or observed any of the abuses Mr. Cruz suffered while in NYPD custody from June 1 to June 2, 2020, or participated in the search of his home on or around June 2 or 3, 2020 or the repeated calls to his girlfriend in or around June 2-4, 2020. Defendant Muhammad Amir is or was, at all relevant times, a police officer employed by the NYPD. Defendant Patrick Cherry is or was, at all relevant times, a Sergeant employed by the NYPD. Defendant Mayko Matos is or was, at all relevant times, a police officer employed by the NYPD. Defendant John O'Connell is or was, at all relevant times, a police officer employed by the NYPD. Defendant Gustavo Montesdeoca is or was, at all relevant times, a police officer employed by the NYPD. Defendant Kyong Kim is or was, at all relevant times, a police officer employed by the NYPD. Defendant Anthony Morales is or was, at all relevant times, a police officer employed by the NYPD. Defendant Victor Lee is or was, at all relevant times, a police officer employed by the NYPD. Defendant Marta Mendez is or was, at all relevant times, a police officer employed by the NYPD. Defendant Marta Mendez may have been previously known as Marta Maciag. Mr. Cruz is unaware of the number of Defendant Officers, although he is aware there is at least one additional John or Jane Doe and at least ten Defendant Officers in total. Mr. Cruz is unaware of the names or identities of Defendant Officers other than those named above. This is the reason Mr. Cruz has sued John and Jane Does collectively and using fictitious names. Defendant Officers were, at all relevant times, duly appointed and acting officers of the NYPD, acting under color of law and in their individual capacity within the scope

of employment pursuant to the statutes, ordinances, regulations, policies, customs, and usage of the City and the State of New York. They may be entitled to indemnification under N.Y. Gen. Mun. Law § 50-k. Each and all of the acts and omissions of Defendant Officers alleged herein occurred while said Defendant Officers were acting within the scope of their employment by the Defendant City. At all times relevant, as set forth more fully below, Defendant Officers' actions and/or failures to act were malicious, intentional, knowing, and/or with a deliberate indifference to or a reckless regard for the natural and probable consequences of their acts and/or omissions.

JURISDICTION AND VENUE

10. This action falls within one or more of the exceptions set forth in CPLR § 1602.

11. More than thirty (30) days have elapsed since the claims upon which this action is based were presented to the defendant City of New York, and the City neglected and/or refused to make payment or adjustment thereof.

12. This action was commenced within one (1) year and ninety (90) days after both the accrual of the causes of action alleged in this complaint and the happening of the incidents complained about.

13. Venue lies in the Supreme Court of the State of New York, in the County of New York because the conduct of which Plaintiff complains all occurred in New York County.

COMPLIANCE WITH NEW YORK GENERAL MUNICIPAL LAW

14. Plaintiff served a Notice of Claim upon the City of New York within ninety days after his claims arose. Plaintiff served the Notice of Claim on August 27, 2020; the events giving rise to his claims occurred no earlier than June 1, 2020. The City has acknowledged receipt of Mr. Cruz's claim, and has assigned it Claim No. 2020PI023094. The Notice of Claim is attached

hereto as Exhibit 1.

15. Plaintiff submitted to an on-the-record examination, which took place on April 15, 2021. The certified transcript of the examination is attached hereto as Exhibit 2.

FACTUAL ALLEGATIONS

A. Background

16. On the night of May 31, 2020, Mr. Cruz and his girlfriend, Ms. Johanny Tavaréz, attended a Black Lives Matter protest near City Hall in lower Manhattan. They departed the protest without incident.

17. Shortly after midnight on June 1, 2020, Mr. Cruz and Ms. Tavaréz were walking North on Broadway through the Manhattan neighborhood of SoHo, on their way home. They were walking alone, not accompanied by any friends, acquaintances, or crowd. There were some other people on the street, but no more so than on an average weekend night in New York City. The street was relatively empty of traffic, and they did not observe any police presence.

18. Mr. Cruz and Ms. Tavaréz passed a drug store located on Broadway and 4th Street that had its front glass door broken. At this time, there were no other people visible in or around the drug store, no crowd on the street, and no protesting or visible police presence.

19. Mr. Cruz went into the store. Ms. Tavaréz stayed on the street a few yards away.

B. A Large Group of NYPD Officers Attack Mr. Cruz

20. While inside the store, Mr. Cruz heard Ms. Tavaréz scream. He quickly left the store and, as he was leaving, saw more than a dozen individuals in dark clothes rushing towards him from down the street.

21. Mr. Cruz first began to run away because he did not know the individuals were police officers. They did not identify themselves or make any announcements or demands, and

in the dark lighting Mr. Cruz did not see any uniforms or badges.

22. After a few steps, Mr. Cruz quickly saw another group of individuals coming from his other side, blocking his way. In this second group, he saw individuals on horseback and in riot gear—e.g. shields—and quickly realized he was being chased by police. At that point, he immediately stopped running and stood still. The officers from both groups continued rushing towards him and violently confronted him.

23. The first officer to reach Mr. Cruz struck him on the head with a riot shield. Another officer then tackled Mr. Cruz to the ground. When Mr. Cruz fell, his head hit the pavement hard and he was knocked unconscious.

24. When Mr. Cruz regained consciousness, he was laying on the ground, handcuffed, and surrounded by officers beating him. He could not count how many officers there were, or how many times he was repeatedly hit: on his head, his hands, and all over his body. He was struck with batons, kicked with boots, and dragged on the pavement. He could not protect himself or defend himself because he was handcuffed and disoriented.

25. While he was being beaten, Ms. Tavaréz and a group of onlookers screamed and pled with the police officers to stop. Ms. Tavaréz recorded video of the incident on her cell phone. Ms. Tavaréz screamed at the officers that they were going to kill him.

C. NYPD Officers Withheld Medical Care and Showed Deliberate Indifference to Mr. Cruz's Injuries

26. Eventually, the officers stopped beating Mr. Cruz, brought him to his feet, and took him back to the sidewalk in front of the drug store where he was interrogated.

27. During the interrogation, Mr. Cruz was in intense pain and requested medical assistance. The officers refused, told him to be quiet, and ignored his injuries and complaints. They took no action to provide him medical assistance or any sort of care.

28. Ms. Tavaréz also repeatedly asked the officers to provide Mr. Cruz medical assistance. She was kept physically separate from Mr. Cruz by one or more officers. The officers repeatedly told her to “back off” and leave the scene, and threatened to arrest her if she did not. They did not take any action in response to her pleas on behalf of Mr. Cruz.

29. Ms. Tavaréz had used her cell phone to record the assault while it was happening, as well as Mr. Cruz’s condition after the fact. Officers approached her in a threatening manner, told her not to record, tried to scare her into not recording, and threatened to arrest her if she did not stop recording. One officer in a white shirted uniform followed Ms. Tavaréz particularly closely and insistently told her to stop recording and leave the area.

30. Mr. Cruz feared for Ms. Tavaréz’s safety during his interrogation. Mr. Cruz saw officers keep her separated, harass her, grab her, yell at her, and threaten to arrest her.

31. At no point was Mr. Cruz told he was under arrest.

32. While being held near the drug store, well after the assault had ended, Mr. Cruz saw one officer, in a white shirted uniform tell the other officers at the scene to turn their body cameras on, and then witnessed the other officers do so.

33. The officers who participated and/or observed and failed to intervene in the above acts (¶¶ 22-32) include Patrick Cherry, John O’Connell, Gustavo Montesdeoca, Kyong Kim, and Anthony Morales.

34. After approximately 15–30 additional minutes of being held outside the drug store, Mr. Cruz was taken into custody in a police van, which drove him to a precinct.

D. NYPD Officers Detained Mr. Cruz for a Prolonged Time, in Cruel Conditions, while Withholding Medical Care

35. While at the precinct, Mr. Cruz was subjected to an invasive pat-down search during which the searching officer, Mayko Matos, gratuitously and offensively handled his

genitals.

36. Throughout the process, multiple officers, including Mayko Matos, taunted Mr. Cruz and bragged that they could mistreat him without consequence.

37. The officers cut parts of his clothes rather than confiscate them. Officer Mayko Matos cut the drawstring of his hooded sweatshirt and, in doing so, quickly and threateningly brought a knife close to Mr. Cruz's neck. Mr. Cruz was fearful in the moment and thought his neck would be cut by the knife.

38. The officers, including Mayko Matos, cut Mr. Cruz's sweatshirt drawstring, and then additionally confiscated his sweatshirt. They also confiscated his shoes and made him wear only socks in the cell.

39. Throughout the intake process, Defendant Officers, including Mayko Matos, degraded and taunted Mr. Cruz and boasted that he could not do anything in return.

40. Defendant Officers Victor Lee and Marta Mendez observed and failed to intervene in these acts.

41. Mr. Cruz was also forced to stand in the cell because it was so overcrowded that there was no room to sit or lie down.

42. Mr. Cruz stood and waited in the cell at the precinct for approximately 15 hours.

43. During this time, his physical condition deteriorated. He repeatedly requested medical aid and informed Defendant Officers that he was in pain, light-headed, thirsty, and hungry.

44. Defendant Officers refused assistance of any kind, told him they did not care, and told him to "shut up." One officer threatened to assault Mr. Cruz out of uniform if he ever saw him on the street.

45. Mr. Cruz received no medical treatment the entire time he was held at the precinct.

46. In addition to worsening his injuries, the extended holding in an overcrowded cell subjected Mr. Cruz to an unreasonable risk of contracting COVID-19.

47. Around the afternoon or evening of June 1, 2020, he was transferred to Central Booking.

48. At Central Booking, Mr. Cruz was further neglected and abused.

49. During intake, he was subjected to an even more invasive cavity search in which his anus was roughly penetrated by an officer's hand.

50. In the cell, it was again overcrowded and he was again forced to stand continuously.

51. Throughout this time, the toilet in the cell was broken and filled with feces and urine.

52. Mr. Cruz repeatedly complained to the officers that he was in pain, faint, thirsty, and hungry. He showed them his injuries and repeatedly requested medical treatment.

53. Mr. Cruz's injuries were plainly visible, including bruises and scratches on his head and face, and a very swollen hand.

54. Nevertheless, the officers refused to offer any aid and told him to stop complaining. Officers outside Mr. Cruz's cell, both at Central Booking and the precinct, repeatedly mocked and threatened him when he asked for medical treatment or complained that the police were acting abusively.

55. One officer put his knee on the ground and made choking sounds to mimic Derek Chauvin suffocating George Floyd.

56. Officers also actively prevented Mr. Cruz from getting treatment from the medical staff during intake: when Mr. Cruz's group of arrestees was taken to see a nurse during

the intake process at Central Booking, one or more officers expressly threatened Mr. Cruz not to make any medical complaint, or else they would delay his paperwork and keep him in custody for longer.

57. The officers who mistreated Mr. Cruz at Central Booking included Officer Muhammad Amir.

58. In custody at Central Booking, Mr. Cruz's condition deteriorated further.

59. After approximately 10 hours at Central Booking, Mr. Cruz began feeling flush and losing control of his body. He started twitching involuntarily and felt his head spin. He remembers the other arrestees in his cell telling the officers he looked sickly and pale and needed help. Finally Mr. Cruz passed out, unconscious.

60. He awoke being examined and treated by an Emergency Medical Technician. Mr. Cruz remained in custody after treatment, but was placed in a different cell where he laid down and fell asleep.

61. After sleeping for a short time, he was abruptly awoken by a horrible smell. He then realized the new cell in which he had been placed had feces smeared on the walls.

62. The smell was unbearable. Mr. Cruz asked the police to transfer him back to the first cell, but they refused. They kept him in the feces-covered cell for several more hours.

63. In total, Mr. Cruz was kept at Central Booking for approximately 15 hours.

64. In or around the afternoon of June 2, 2022, after approximately 30–40 hours in custody, Mr. Cruz was finally brought to court. The judge ordered that he be released on his own recognizance. Mr. Cruz was charged with one count of burglary in the third degree, since dismissed in the Interest of Justice, and one count of criminal trespass in the third degree, since dismissed by Adjournment in Contemplation of Dismissal.

F. NYPD Officers Harassed and Intimidated Mr. Cruz and his Parents

65. Shortly after Mr. Cruz returned home from custody, to his apartment that he shares with his parents, he was in his living room and heard someone loudly knocking on his door, announcing themselves as police.

66. Answering the door, Mr. Cruz saw four police officers.

67. He asked why they were there and one officer told him they were looking for a missing girl, and that she had been seen with him in his apartment the day before.

68. Mr. Cruz responded that the only people in the apartment were himself and his parents, and that the report could not be accurate because he had been in custody for the past two days. He then asked if they had a warrant to enter his home.

69. The officers responded that they did not have a warrant.

70. The officers then asked Mr. Cruz if his name was David Cruz.

71. Mr. Cruz confirmed that it was.

72. The officers then said they had probable cause that permitted them to enter his apartment.

73. Mr. Cruz repeated that he did not have anything to do with a missing girl, told the officers they did not have permission to enter, and asked them to leave.

74. Mr. Cruz attempted to close his front door, but one officer placed their foot in the way to prevent it from closing, and all four officers forcibly entered his apartment.

75. The officers began searching through his home.

76. Mr. Cruz continued telling the officers that they had no permission or right to enter his home, and kept asking them to leave. He shouted down the hallway to alert his parents that the police were there.

77. Mr. Cruz's mother, Maria Cruz, emerged from her bedroom and saw the officers. Mr. Cruz told her what the officers had said, and told her that they did not have a warrant. As Mrs. Cruz began walking out of her room, the officers stopped searching and left the apartment.

78. She followed the officers and spoke to them at the apartment front door. She asked why they had come into the apartment.

79. The officers gave her the same explanation they had given Mr. Cruz, about a missing girl having been seen in the apartment.

80. Mrs. Cruz told officers that they and their apartment had nothing to do with a missing girl and that the officers had no reason to be there.

81. The officers then claimed that they had mistaken the Cruz's apartment for a different one and began knocking on a neighboring apartment door.

82. The officers did not explain why they had asked for Mr. Cruz by name.

G. The NYPD Harassed Ms. Tavarez to Demand She Destroy Evidence of the Assault on Mr. Cruz

83. In the days after Mr. Cruz's arrest and detainment, Ms. Tavarez received multiple phone calls from individuals identifying themselves as NYPD officers. At least two individuals called and told her to destroy any videos or photos she took of the assault on Mr. Cruz, or else she would be arrested.

84. At first, she ignored the calls, but ultimately, she became so afraid that she did delete video she had taken. The next time she received one of these calls, she told the caller she had deleted the video, the caller said "good," and told her that if any such video ever surfaced, she would go to jail.

H. The NYPD Officers' Actions Caused Mr. Cruz Serious Emotional and Physical Harm

85. Mr. Cruz suffered the immense physical and emotional pain during the incident

itself, as described above. This includes being assaulted, denied medical care, food, and water, subjected to cruel and unsafe conditions in custody, wrongfully held for a prolonged time in custody, abused and harassed in custody, and harassed in his home.

86. As a result of these events, Mr. Cruz has further suffered from debilitating post-traumatic stress, anxiety, and depression.

87. For months afterwards, he rarely left his apartment, and often stayed in bed all day. He felt incapacitating fear from knocks at his front door, loud sounds, sounds of police sirens outside, or the sight of police. He struggled with insomnia very frequently and, when he was able to sleep, nightmares woke him up in a cold panicked sweat. Even long after the incident, these symptoms continue. He hallucinates voices and loud noises that give him heart palpitations and make him fear that someone is trying to enter his apartment to hurt him. He still struggles to leave the house due to fear of being attacked, suffers acute attacks of anxiety, and suffers period of deep depression including passive suicidal thoughts. He has lost excessive weight.

88. For weeks after the incident, Mr. Cruz's physical injuries were also debilitating. For two weeks after the incident, his body hurt so much that he was almost completely bedridden. He had bruises on his back, legs, arms, and head, scrapes on his face and hands, and a very swollen, painful right hand. For two to three weeks, he had overwhelming headaches that lasted much of the day, most days.

89. Mr. Cruz's injuries negatively affected his professional life. He worked as a delivery driver and salesman for approximately 10 years up until around March 2020. He has twice been offered to reprise this job since then, and he has been unable to because of his psychological symptoms.

90. Mr. Cruz's family life has also suffered. Mr. Cruz's psychological injuries have caused him to become socially isolated, and have impaired his relationships with even his closest family.

91. Mr. Cruz's injuries include pain and suffering, degradation, humiliation, fear for his safety and the safety of Ms. Tavaréz, loss of esteem, loss of quality of life, loss of income and earning potential, and various other physical and emotional injuries. These injuries were factually and proximately caused by the conduct of NYPD officers set forth above, including: physical assault, denial of medical care, prolonged detention without food, water, or rest, two unreasonable and abusive body searches, an illegal invasion and search of his home, and intimidation of himself and his loved ones.

CAUSES OF ACTION**FIRST CLAIM****Excessive Force****U.S. Constitution Amendments IV and XIV and 42 U.S.C. § 1983
Against Defendants City of New York and Individual Defendants**

92. Mr. Cruz re-alleges and incorporates by reference the preceding paragraphs of this complaint.

93. Defendant Officers used an objectively unreasonable degree of force under the circumstances at least in detaining Mr. Cruz, arresting Mr. Cruz, searching his person, and in holding him in custody pre-arraignment.

94. Defendant Officers' conduct was a direct and proximate cause of the injuries and damages set forth above.

95. Defendant Officers committed these acts under color of law, ordinance, rule, regulation, custom or usage.

96. Defendant Officers committed these acts intentionally, willfully, and with malicious disregard for Plaintiff's rights and are therefore liable for punitive damages.

97. Defendant Officers were acting under the direction of the NYPD and within the scope of their employment.

98. Defendant City, as the employer of Defendant Officers, is responsible for their wrongdoing under the doctrine of respondeat superior.

99. Upon information and belief, Defendant City had an official policy, custom, or routine practice of using excessive force in effectuating arrests and handling arrestees, and this official custom or routine practice was widespread and reflected a deliberate indifference to its citizens' constitutional rights.

100. The above described policies and customs were a direct and proximate cause of the violations of Mr. Cruz's constitutional rights alleged herein.

SECOND CLAIM
Deliberate Indifference
U.S. Constitution Amendment IV and XIV and 42 U.S.C. § 1983
Against Defendants City of New York and Individual Defendants

101. Mr. Cruz re-alleges and incorporates by reference the preceding paragraphs of this complaint.

102. Defendant Officers were aware of a risk to the health and safety of Mr. Cruz and failed to act and/or acted improperly, with deliberate indifference to Mr. Cruz's rights and wellbeing.

103. Defendant Officers' conduct was a direct and proximate cause of the injuries and damages set forth above.

104. Defendant Officers committed these acts under color of law, ordinance, rule, regulation, custom or usage.

105. Defendant Officers committed these acts intentionally, willfully, and with malicious disregard for Plaintiff's rights and are therefore liable for punitive damages.

106. Defendant Officers were acting under the direction of the NYPD and within the scope of their employment.

107. Defendant City, as the employer of Defendant Officers, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

108. Upon information and belief, Defendant City had an official policy, custom, or routine practice of deliberate indifference in effectuating arrests and handling arrestees, and this official custom or routine practice was widespread and reflected a deliberate indifference to its citizens' constitutional rights.

109. The above described policies and customs were a direct and proximate cause of the violations of Mr. Cruz's constitutional rights alleged herein.

THIRD CLAIM
Excessive Detention
U.S. Constitution Amendment IV and 42 U.S.C. § 1983
Against Defendants City of New York and Individual Defendants

110. Mr. Cruz re-alleges and incorporates by reference the preceding paragraphs of this complaint.

111. Defendant Officers intentionally delayed processing and arraignment of Mr. Cruz's case resulting in Mr. Cruz being detained longer than was objectively reasonable under the circumstances.

112. Defendant Officers' conduct was a direct and proximate cause of the injuries and damages set forth above.

113. Defendant Officers committed these acts under color of law, ordinance, rule, regulation, custom or usage.

114. Defendant Officers committed these acts intentionally, willfully, and with malicious disregard for Plaintiff's rights and are therefore liable for punitive damages.

115. Defendant Officers were acting under the direction of the NYPD and within the scope of their employment.

116. Defendant City, as the employer of Defendant Officers, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

117. Upon information and belief, Defendant City had an official policy, custom, or routine practice of excessive detention in effectuating arrests and handling arrestees, and this official custom or routine practice was widespread and reflected a deliberate indifference to its citizens' constitutional rights.

118. The above described policies and customs were a direct and proximate cause of the violations of Mr. Cruz's constitutional rights alleged herein.

FOURTH CLAIM
Denial of Due Process
U.S. Constitution Amendment XIV and 42 U.S.C. § 1983
Against Defendants City of New York and Individual Defendants

119. Mr. Cruz re-alleges and incorporates by reference the preceding paragraphs of this complaint.

120. By the conduct described above, Defendant Officers deprived Mr. Cruz of due process of law in violation of the Fourteenth Amendment of the U.S. Constitution.

121. Defendant Officers' conduct was a direct and proximate cause of the injuries and damages set forth above.

122. Defendant Officers committed these acts under color of law, ordinance, rule, regulation, custom or usage.

123. Defendant Officers committed these acts intentionally, willfully, and with malicious disregard for Plaintiff's rights and are therefore liable for punitive damages.

124. Defendant Officers were acting under the direction of the NYPD and within the scope of their employment.

125. Defendant City, as the employer of Defendant Officers, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

126. Upon information and belief, Defendant City had an official policy, custom, or routine practice of denying due process in effectuating arrests and handling arrestees, and this official custom or routine practice was widespread and reflected a deliberate indifference to its citizens' constitutional rights.

127. The above described policies and customs were a direct and proximate cause of the violations of Mr. Cruz's constitutional rights alleged herein.

FIFTH CLAIM
Unlawful Search
U.S. Constitution Amendment IV and 42 U.S.C. § 1983
Against Defendants City of New York and Individual Defendants

128. Mr. Cruz re-alleges and incorporates by reference the preceding paragraphs of this complaint.

129. The Defendant Officers unlawfully searched Mr. Cruz without reasonable suspicion, at least at his home and while in custody, in violation of the Fourth Amendment of the U.S. Constitution.

130. Defendant Officers' conduct was a direct and proximate cause of the injuries and damages set forth above.

131. Defendant Officers committed these acts under color of law, ordinance, rule, regulation, custom or usage.

132. Defendant Officers committed these acts intentionally, willfully, and with malicious disregard for Plaintiff's rights and are therefore liable for punitive damages.

133. Defendant Officers were acting under the direction of the NYPD and within the scope of their employment.

134. Defendant City, as the employer of Defendant Officers, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

135. Upon information and belief, Defendant City had an official policy, custom, or routine practice of unlawful searching in effectuating arrests and handling arrestees, and this official custom or routine practice was widespread and reflected a deliberate indifference to its citizens' constitutional rights.

136. The above described policies and customs were a direct and proximate cause of the violations of Mr. Cruz's constitutional rights alleged herein.

SIXTH CLAIM
Harassment and Intimidation
U.S. Constitution Amendment IV and XIV and 42 U.S.C. § 1983
Against Defendants City of New York and Individual Defendants

137. Mr. Cruz re-alleges and incorporates by reference the preceding paragraphs of this complaint.

138. Defendant Officers deliberately engaged in a pattern of harassment and intimidation of Mr. Cruz and his loved ones that lacked justification or excuse and threatened his constitutionally protected right to due process. This conduct violated of Mr. Cruz's right against unreasonable invasions of privacy and his right to due process.

139. Defendant Officers' conduct was a direct and proximate cause of the injuries and damages set forth above.

140. Defendant Officers committed these acts under color of law, ordinance, rule, regulation, custom or usage.

141. Defendant Officers committed these acts intentionally, willfully, and with malicious disregard for Plaintiff's rights and are therefore liable for punitive damages.

142. Defendant Officers were acting under the direction of the NYPD and within the scope of their employment.

143. Defendant City, as the employer of Defendant Officers, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

144. Upon information and belief, Defendant City had an official policy, custom, or routine practice of intimidation and/or harassment in effectuating arrests and handling arrestees, and this official custom or routine practice was widespread and reflected a deliberate indifference to its citizens' constitutional rights.

145. The above described policies and customs were a direct and proximate cause of

the violations of Mr. Cruz's constitutional rights alleged herein.

SEVENTH CLAIM
Failure to Intervene
U.S. Constitution Amendment IV and 42 U.S.C. § 1983
Against Defendants City of New York and Individual Defendants

146. Mr. Cruz re-alleges and incorporates by reference the preceding paragraphs of this complaint.

147. Defendant Officers who were present at the arrest, at Mr. Cruz's cell in the precinct, and at Mr. Cruz's cell in Central Booking, had a duty to intervene to prevent violations of Mr. Cruz's rights by other officers of the NYPD. Any reasonable person could discern that Mr. Cruz's rights were being violated and would have had ample opportunity to intervene. Defendant Officers failed to do so.

148. Defendant Officers' conduct was a direct and proximate cause of the injuries and damages set forth above.

149. Defendant Officers committed these acts under color of law, ordinance, rule, regulation, custom or usage.

150. Defendant Officers committed these acts intentionally, willfully, and with malicious disregard for Plaintiff's rights and are therefore liable for punitive damages.

151. Defendant Officers were acting under the direction of the NYPD and within the scope of their employment.

152. Defendant City, as the employer of Defendant Officers, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

153. Upon information and belief, Defendant City had an official policy, custom, or routine practice of its officers failing to intervene in effectuating arrests and handling arrestees, and this official custom or routine practice was widespread and reflected a deliberate

indifference to its citizens' constitutional rights.

154. The above described policies and customs were a direct and proximate cause of the violations of Mr. Cruz's constitutional rights alleged herein.

EIGHTH CLAIM
Common-Law Battery under the Laws of the State of New York
Against Defendant City of New York

155. Mr. Cruz re-alleges and incorporates by reference the preceding paragraphs of this complaint.

156. Defendant Officers intentionally made offensive contact with Mr. Cruz without privilege or consent, and used an objectively unreasonable degree of force under the circumstances in detaining, arresting, searching, and/or holding Mr. Cruz.

157. As a result of Defendant Officers' conduct, Mr. Cruz suffered physical injury, emotional distress, and mental anguish.

158. Defendant Officers were acting under the direction of the NYPD and within the scope of their employment.

159. Defendant Officers committed the foregoing acts intentionally, willfully, and with malicious disregard for Plaintiff's rights and are therefore liable for punitive damages.

160. Defendant City, as the employer of Defendant Officers, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

161. Upon information and belief, Defendant City had an official policy, custom, or routine practice of battery in effectuating arrests and handling arrestees, and this official custom or routine practice was widespread and reflected a deliberate indifference to its citizens' rights.

162. The above described policies and customs intentionally caused Mr. Cruz to suffer offensive contact, without privilege or consent, directly and proximately causing Mr. Cruz to

suffer physical injury, emotional distress, and mental anguish.

163. Upon information and belief, Defendant City battered Mr. Cruz through its acts and/or the acts of its agent Officers, as described herein.

NINTH CLAIM
Common-Law Assault under the Laws of the State of New York
Against Defendant City of New York

164. Mr. Cruz re-alleges and incorporates by reference the preceding paragraphs of this complaint.

165. Defendant Officers intentionally placed Mr. Cruz in apprehension of imminent harmful and offensive bodily contact.

166. Defendant Officers did so without privilege or consent.

167. As a result of Defendant Officers' conduct, Mr. Cruz suffered physical injury, emotional distress, and mental anguish.

168. Defendant Officers were acting under the direction of the NYPD and within the scope of their employment.

169. The Defendant Officers committed the foregoing acts intentionally, willfully, and with malicious disregard for Plaintiff's rights and are therefore liable for punitive damages.

170. Defendant City, as the employer of Defendant Officers, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

171. Upon information and belief, Defendant City had an official policy, custom, or routine practice of assault in effectuating arrests and handling arrestees, and this official custom or routine practice was widespread and reflected a deliberate indifference to its citizens' rights.

172. The above described policies and customs placed Mr. Cruz in apprehension of imminent harmful and offensive bodily contact, without privilege or consent, directly and

proximately causing Mr. Cruz to suffer physical injury, emotional distress, and mental anguish.

173. Upon information and belief, Defendant City assaulted Mr. Cruz through its acts and/or the acts of its agent Officers, as described herein.

TENTH CLAIM
Common-Law Intentional Infliction of Emotional Distress
under the Laws of the State of New York
Against Defendant City of New York

174. Mr. Cruz realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

175. Defendant Officers, through the foregoing acts, did commit extreme and outrageous conduct and thereby intentionally, and/or recklessly caused Plaintiff to experience severe mental and emotional distress, pain, and suffering.

176. Defendants intended to, or were grossly indifferent to the likelihood that such conduct would cause Mr. Cruz severe emotional distress.

177. Mr. Cruz suffered extreme emotional distress as a direct and proximate result of Defendants' conduct.

178. Defendant Officers committed the foregoing acts intentionally, willfully, and with malicious disregard for Plaintiff's rights and are therefore liable for punitive damages.

179. At all relevant times, Defendant Officers were employees of the City and were acting within the scope of their employment.

180. Defendant City, as the employer of Defendant Officers, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

181. Upon information and belief, Defendant City had an official policy, custom, or routine practice of intentional infliction of emotional distress in effectuating arrests and handling arrestees, and this official custom or routine practice was widespread and reflected a deliberate

indifference to its citizens' rights.

182. The above described policies and customs were extreme and outrageous, committed intentionally or with gross indifference to causing Mr. Cruz severe emotional distress, and caused Mr. Cruz to experience severe mental and emotional distress, pain, and suffering.

183. Upon information and belief, Defendant City intentionally inflicted emotional distress on Mr. Cruz through its acts and/or the acts of its agent Officers, as described herein.

ELEVENTH CLAIM
Common-Law Negligence under the Laws of the State of New York
Against Defendant City of New York

184. Mr. Cruz realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

185. Defendant Officers owed Mr. Cruz a duty of care, including the duty to exercise due care in the course of their duties as NYPD officers and the duty to protect citizens from the intentional misconduct of other NYPD officers.

186. Defendant Officers, through the foregoing acts, negligently failed to use due care in the performance of their duties in that they failed to perform their duties with the degree of care that a reasonably prudent and careful officer would have used under similar circumstances.

187. All of these acts were performed without any negligence on the part of Mr. Cruz and were a direct and proximate cause of the injuries to Mr. Cruz.

188. At all relevant times, the Defendant Officers were employees of the City.

189. Defendant City owed a duty of care to Mr. Cruz to adequately supervise its employees.

190. Defendant City breached its duty of care by failing to adequately supervise its

employees, Defendant Officers.

191. The City knew or should have known of Defendant Officers' propensity to commit the tortious acts alleged herein and continued to employ and/or retain the Defendant Officers and/or inadequately supervise them despite their propensity to commit the tortious acts alleged herein.

192. Defendant Officers committed the tortious acts alleged herein using Defendant City's instrumentalities.

193. Mr. Cruz's injuries were directly and proximately caused by Defendant City's negligent supervision of Defendant Officers.

TWELFTH CLAIM
Common-Law False Imprisonment under the Laws of the State of New York
Against Defendant City of New York

194. Mr. Cruz realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

195. Defendant Officers intentionally and completely confined Mr. Cruz by holding him in police custody.

196. Mr. Cruz at no time consented to the confinement, and was at all times conscious of the confinement except the period of time when he had fainted.

197. The confinement was not privileged or justified because, regardless of the reason or manner of Mr. Cruz's initial confinement, his detention was unduly prolonged by Defendant Officers without good faith or legal justification.

198. At all relevant times, Defendant Officers were employees of the City and acting within the scope of their employment.

199. Defendant City, as the employer of Defendant Officers, is responsible for their

wrongdoing under the doctrine of *respondeat superior*.

200. Upon information and belief, Defendant City had an official policy, custom, or routine practice of false imprisonment in effectuating arrests and handling arrestees, and this official custom or routine practice was widespread and reflected a deliberate indifference to its citizens' rights.

201. The above described policies caused Mr. Cruz to be intentionally and completely confined without consent or justification and caused Mr. Cruz to experience the injuries described herein.

202. Upon information and belief, Defendant City falsely imprisoned Mr. Cruz through its acts and/or the acts of its agent Officers, as described herein.

THIRTEENTH CLAIM

New York State Constitution – Article I, § 12 (Excessive Force)

Against Defendant City of New York

203. Mr. Cruz repeats and realleges the preceding paragraphs as if set forth here.

204. Defendant Officers subjected Mr. Cruz to unnecessary and unreasonable force in effectuating his arrest. Defendant Officers also subjected Mr. Cruz to unnecessary and unreasonable force while holding him in custody.

205. These acts unlawfully deprived Mr. Cruz of his right against excessive force guaranteed by the New York State Constitution.

206. Defendant Officers' deprivations of Mr. Cruz's rights guaranteed by the New York State Constitution were a direct and proximate cause of the injuries and damages set forth above.

207. Defendant Officers' conduct was objectively unreasonable.

208. Defendant Officers' conduct was committed intentionally, willfully, recklessly,

and with wanton and malicious disregard for Mr. Cruz's rights such that they are liable for punitive damages.

209. Defendant Officers committed the foregoing acts under color of law, ordinance, rule, regulation, custom or usage.

210. At all relevant times, Defendant Officers were employees of the City and acting within the scope of their employment.

211. Defendant City, as the employer of Defendant Officers, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

212. Upon information and belief, Defendant City had an official policy, custom, or routine practice of using excessive force in effectuating arrests and handling arrestees, and this official custom or routine practice was widespread and reflected a deliberate indifference to its citizens' constitutional rights.

213. The above described policies and customs were a direct and proximate cause of the violations of Mr. Cruz's constitutional rights alleged herein.

FOURTEENTH CLAIM
New York State Constitution – Article I, § 12 (Unlawful Seizure)
Against Defendant City of New York

214. Mr. Cruz repeats and realleges the preceding paragraphs as if set forth here.

215. Defendant Officers unreasonably seized Mr. Cruz in effecting his arrest, because they used unreasonable force, did not notify him he was being arrested, did not identify themselves as police, and violated other rights. Defendant Officers also unreasonably seized Mr. Cruz by detaining him in cruel and unsafe conditions. Defendant Officers also unreasonably seized Mr. Cruz by prolonging his detention without good faith or legal justification.

216. These acts unlawfully deprived Mr. Cruz of his right against unreasonable

seizure guaranteed by the New York State Constitution.

217. Defendant Officers' deprivations of Mr. Cruz's rights guaranteed by the New York State Constitution were a direct and proximate cause of the injuries and damages set forth above.

218. Defendant Officers' conduct was objectively unreasonable.

219. Defendant Officers' conduct was committed intentionally, willfully, recklessly, and with wanton and malicious disregard for Mr. Cruz's rights such that they are liable for punitive damages.

220. Defendant Officers committed the foregoing acts under color of law, ordinance, rule, regulation, custom or usage.

221. At all relevant times, Defendant Officers were employees of the City and acting within the scope of their employment.

222. Defendant City, as the employer of Defendant Officers, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

223. Upon information and belief, Defendant City had an official policy, custom, or routine practice of unlawful seizure, and this official custom or routine practice was widespread and reflected a deliberate indifference to its citizens' constitutional rights.

224. The above described policies and customs were a direct and proximate cause of the violations of Mr. Cruz's constitutional rights alleged herein.

FIFTEENTH CLAIM
New York State Constitution – Article I, § 12 (Unlawful Search)
Against Defendant City of New York

225. Mr. Cruz repeats and realleges the preceding paragraphs as if set forth here.

226. Defendant Officers searched Mr. Cruz's home without the reasonable articulable

suspicion of criminality required by Section 12 of Article 1 of the New York State Constitution. Defendant Officers also unreasonably searched Mr. Cruz's person while in custody, with unreasonably violent and invasive means and without reasonable legal justification.

227. These acts unlawfully deprived Mr. Cruz of his right against unreasonable search guaranteed by the New York State Constitution.

228. Defendant Officers' deprivations of Mr. Cruz's rights guaranteed by the New York State Constitution were a direct and proximate cause of the injuries and damages set forth above.

229. Defendant Officers' conduct was objectively unreasonable.

230. Defendant Officers' conduct was committed intentionally, willfully, recklessly, and with wanton and malicious disregard for Mr. Cruz's rights such that they are liable for punitive damages.

231. Defendant Officers committed the foregoing acts under color of law, ordinance, rule, regulation, custom or usage.

232. At all relevant times, Defendant Officers were employees of the City and acting within the scope of their employment.

233. Defendant City, as the employer of Defendant Officers, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

234. Upon information and belief, Defendant City had an official policy, custom, or routine practice of conducting unlawful searches, and this official custom or routine practice was widespread and reflected a deliberate indifference to its citizens' constitutional rights.

235. The above described policies and customs were a direct and proximate cause of the violations of Mr. Cruz's constitutional rights alleged herein.

PRAYER FOR RELIEF

WHEREFORE, Mr. Cruz respectfully requests that the Court grant the following relief:

- A. Compensatory damages in an amount to be determined at trial;
- B. Punitive damages to the extent allowable by law;
- C. Reasonable fees, costs, and expenses incurred in connection with this action

as provided in law or equity;

- D. Interest; and
- E. Such other and further relief as the Court may deem just and proper.

Dated: New York, New York
November 30, 2023

GIBSON, DUNN & CRUTCHER LLP

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